

ASCII MASTER FLOW – PANEL 1/9: Citizenship: membership, rights and single national status

PERSON WITHIN INDIA

+-- CITIZEN

- | +-- political membership of India
- | +-- citizen-only rights: Articles 15, 16, 19, 29 and 30
- | +-- eligibility for specified constitutional offices

+-- ALIEN

- +-- person-based guarantees include Articles 14, 20 and 21
- +-- may be foreign national or stateless person

DOMICILE = permanent legal home plus intention

RESIDENCE = factual presence under a specified rule

CITIZENSHIP = legal-political membership

SINGLE CITIZENSHIP -> national equality of membership across Union and States

ASCII MASTER FLOW – PANEL 2/9: Articles 5-7: commencement citizenship decision tree

AT COMMENCEMENT, 26 JAN 1950

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+-- ARTICLE 5: domicile in India + one connection
|   birth in India | parent born in India | five years' ordinary residence
+-- ARTICLE 6: migrated from Pakistan to India
|   before 19 Jul 1948 -> ordinary-residence route
|   on/after 19 Jul 1948 -> registration after permit-era conditions
+-- ARTICLE 7: migrated to Pakistan after 1 Mar 1947
    generally excluded
    +-- permit for resettlement/permanent return may restore Article 6 route
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CONTROL

Five-year residence alone never satisfied Article 5; domicile remained essential.

ASCII MASTER FLOW – PANEL 3/9: Articles 8-11: overseas origin, continuity and Parliament

ARTICLE 8

Indian origin abroad + registration by Indian diplomatic or consular officer

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ARTICLE 9

voluntary foreign citizenship blocks Articles 5, 6 and 8 claim

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ARTICLE 10

commencement citizenship continues subject to parliamentary law

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ARTICLE 11

Parliament regulates acquisition, termination and all citizenship matters

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CITIZENSHIP ACT 1955

Constitution settled founding membership; statute governs the continuing regime.

ASCII MASTER FLOW – PANEL 4/9: Five statutory routes to acquire citizenship

CITIZENSHIP ACT 1955

- +-- BY BIRTH: date and parents' status
- +-- BY DESCENT: parent link + date-specific registration conditions
- +-- BY REGISTRATION: listed categories and residence conditions
- +-- BY NATURALISATION: Third Schedule qualifications and discretion
- +-- BY INCORPORATION: Central Government specifies eligible persons

NO ROUTE IS AUTOMATIC MERELY FROM

long residence | ancestry | marriage | property | voter document

PROCESS

statutory category -> exact date -> documents -> oath and decision

ASCII MASTER FLOW – PANEL 5/9: Birth and descent rules change across dates

BY BIRTH IN INDIA

26 Jan 1950-30 Jun 1987	birth generally sufficient; exceptions apply
1 Jul 1987-2 Dec 2004	at least one parent must be Indian citizen
from 3 Dec 2004	one citizen parent + other not illegal migrant, or both parents citizens

BY DESCENT OUTSIDE INDIA

before 10 Dec 1992	paternal transmission under then text
10 Dec 1992-2 Dec 2004	either Indian parent can transmit
from 3 Dec 2004	consular registration and declaration controls

A document proves facts; it does not override the date-specific statutory test.

ASCII MASTER FLOW – PANEL 6/9: Three routes of loss and their safeguards

RENUNCIATION

adult citizen's declaration

-> minor child may follow, with statutory resumption protection

TERMINATION

voluntary acquisition of another country's citizenship

-> India does not recognise full dual citizenship

DEPRIVATION

Central Government order for specified grounds

+-- fraud or concealment

+-- disloyalty or unlawful enemy dealing

+-- specified conviction or residence conditions

+-- notice, inquiry and public-good control

renunciation = citizen act | termination = foreign acquisition | deprivation = State order

ASCII MASTER FLOW – PANEL 7/9: Assam Section 6A: cut-offs, consequences and judicial control

ASSAM SPECIFIC SECTION 6A

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+-- entered before 1 Jan 1966
|   deemed citizens under statutory scheme
+-- entered 1 Jan 1966-before 25 Mar 1971
|   detection + registration
|   ten-year electoral-roll exclusion
+-- entered on/after 25 Mar 1971
    no Section 6A protection
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NRC uses 24 March 1971 midnight as Assam's cut-off reference.

IN RE: SECTION 6A (2024) – 17 OCTOBER

4:1 judgment upholds Section 6A; implementation remains crucial.

TENSION: national membership + Assam migration history + cultural protection.

ASCII MASTER FLOW – PANEL 8/9: OCI and CAA: connection is not citizenship

OCI

- +-- lifelong visa-related and notified benefits
- +-- not dual citizenship; no vote or constitutional-office entitlement

CAA FACILITATION

six communities: Hindu, Sikh, Buddhist, Jain, Parsi, Christian

three countries: Afghanistan, Bangladesh, Pakistan

entry: on or before 31 Dec 2014

specified immigration exemption + application conditions

naturalisation aggregate: five instead of eleven years for specified class

territorial exclusions apply

ARTICLE 14 DEBATE

State: neighbouring theocracies, minorities and humanitarian classification

Challenge: religion/country exclusions, under-inclusion, secularism and Assam impact

SOURCE STATUS: 2019 Act and 2024 Rules operative; no located final merits judgment.

ASCII MASTER FLOW – PANEL 9/9: Exact 10/15-mark architecture: national membership and equality

10 MARKS / 150 WORDS

1. Distinguish citizenship, domicile and residence.
2. State Articles 5-11 as commencement rules plus Article 11 bridge.
3. Name five acquisition and three loss routes.
4. Add one exact issue: Section 6A, OCI or CAA.
5. Conclude: single citizenship integrates India but remains reviewable.

15 MARKS / 250 WORDS

1. Map citizen-only and person-based rights.
2. Explain Articles 5-9 through Partition cut-offs; 10-11 through continuity.
3. Compare birth/descent dates and registration/naturalisation.
4. Distinguish renunciation, termination and deprivation.
5. Analyse Section 6A and 2024 judgment.
6. Evaluate CAA under Article 14 and secularism; distinguish OCI.
7. Conclude with lawful membership, equality and documented procedure.